Index No. [000000]/[0000]
[Department] Department Docket No. [CA 00-00000]

Supreme Court of the State of New York, Appellate Division, [Second] Judicial Department

[PLAINTIFF NAME]

Plaintiff-Appellant,

–against–

[DEFENDANT NAME]

Defendant-Respondent.

Argued: [Counsel Name]
Time requested: [15] minutes

BRIEF FOR DEFENDANT-RESPONDENT

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TABLE OF AUTHORITIES

Cases

[Case A] v. [Case B], [reporter citation] ([Dept.] Dept [year])
[Case C] v. [Case D], [reporter citation] ([Court] [year])

Statutes

[Statute Name], [Law] § [section]

Rules

Rules of the Appellate Division, First through Fourth Departments, 22 NYCRR 1250.8

PRELIMINARY STATEMENT

Defendant-Respondent respectfully submits this brief in response to the brief of Plaintiff-Appellant. The Supreme Court correctly granted [the relief requested] because [placeholder statement of the controlling ground in two or three sentences]. The order should be affirmed.

This brief answers each point in the opening brief in the order the opening brief presents it. Where the opening brief describes the record, this brief identifies the page of the record that supports the description and notes each point on which the opening brief misreads the record or the controlling authority.

QUESTIONS PRESENTED

1. Did the Supreme Court correctly hold that [placeholder question presented on the first ground]?

2. Did the Supreme Court correctly hold that [placeholder question presented on the second ground]?

STATEMENT OF THE CASE

A. The Parties and the Agreement

[Placeholder paragraph describing the parties and the agreement at issue, with a citation to the record in the form the Department uses, for example, (R. [page]).] The agreement contained [placeholder term]. Plaintiff-Appellant later [placeholder event], and this action followed.

B. The Complaint and the Motion

[Placeholder paragraph describing the pleading and the motion, with citations to the record.] The motion was decided on the papers. The Supreme Court considered the submissions of both parties and entered the order now on appeal.

> [Placeholder block quotation of a provision of the agreement, offered to show the language the Supreme Court relied upon. A quotation of more than two lines is indented and single-spaced, as the rule permits.]

C. The Order Appealed From

[Placeholder paragraph describing the order, its date, and the relief it granted or denied.] Plaintiff-Appellant filed a notice of appeal on [date].

ARGUMENT

POINT I

[PLACEHOLDER HEADING STATING THE FIRST POINT IN A SENTENCE]

A. [Placeholder subheading for the first sub-argument]

[Placeholder paragraph stating the governing standard, with a citation to authority in the form used by the Department.] The standard is settled. A party moving for relief must establish [placeholder element], and the opposing party must then raise a triable issue of fact on [placeholder element].[1] Plaintiff-Appellant does not dispute the standard. It disputes its application.

[Placeholder paragraph applying the standard to the record. The brief cites the record page for each fact on which it relies, and it addresses the opening brief's account of the same facts directly.] The record shows [placeholder fact], as the Supreme Court found.

[1] [Placeholder footnote. Footnotes are printed in twelve-point type or larger and may be single-spaced.]

Plaintiff-Appellant's contrary account rests on [placeholder characterization], which the record does not support.

[Placeholder paragraph answering the principal authority cited in the opening brief, distinguishing it on its facts and on its procedural posture.] That authority concerned [placeholder distinction]. Here, by contrast, [placeholder distinction]. The Supreme Court was right to find the authority inapposite.

B. [Placeholder subheading for the second sub-argument]

[Placeholder paragraph presenting the second sub-argument. A sub-argument is a separate ground within the same point. Each one states its conclusion first and then supports it.] The statute reads, in relevant part: [placeholder statutory text].

[Placeholder block quotation of statutory text, single-spaced and indented.]

[Placeholder paragraph reading the statute as a whole and explaining why the reading the opening brief proposes would render a phrase of the statute meaningless.] A construction that gives effect to every word is preferred to one that leaves a word without effect.[2] The Supreme Court's reading is the only one that does.

POINT II

[PLACEHOLDER HEADING STATING THE SECOND POINT IN A SENTENCE]

[Placeholder paragraph introducing the second point and its relation to the first. Where the opening brief raises a question of preservation, this paragraph says so and identifies the place in the record where the issue was raised or not raised.]

[2] [Placeholder footnote giving a short citation and a parenthetical explanation.]

[Placeholder paragraph presenting the record evidence on the second point.] The evidence showed [placeholder fact], and it was undisputed that [placeholder fact]. Plaintiff-Appellant offered no evidence on [placeholder element] in response.

[Placeholder paragraph addressing the remedy requested in the opening brief. A remedy that goes beyond the order appealed from is not before the Court, and the brief says so.] Plaintiff-Appellant asks for relief the Supreme Court did not grant and that the notice of appeal does not reach. The request should be disregarded.

POINT III

[PLACEHOLDER HEADING FOR A THIRD POINT, IF THE OPENING BRIEF RAISES ONE]

[Placeholder paragraph answering any remaining point in the opening brief. A point the Supreme Court did not reach is answered on the ground that the record permits, or the brief states that it is not reached.] Any error in the reasoning of the Supreme Court would not change the result, because [placeholder alternative ground].[3]

CONCLUSION

For these reasons, and for the reasons stated in the order appealed from, the order of the Supreme Court should be affirmed, with costs.

[3] [Placeholder footnote noting a record citation or an alternative ground in a few words.]

Respectfully submitted,

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PRINTING SPECIFICATIONS STATEMENT

This brief was prepared on a computer. The typeface is EB Garamond, a serifed, proportionally spaced typeface. The body is printed in 14 point type and footnotes in 12 point type. The line spacing is double-spaced. The word count, exclusive of the pages containing the table of contents, table of authorities, proof of service and certificate of compliance, and exclusive of the signature block, is 797 words. The word count was made by the word-processing system used to prepare the brief.

[Counsel Name]
[Month Day, Year]

AFFIDAVIT OF SERVICE

[Affiant Name] states that on the date below copies of this brief were served on counsel for every party by [method of service, e.g., electronic filing through NYSCEF].

[Counsel Name]
[Month Day, Year]